

TENANCY AGREEMENT WITH ROSA FLATS ON PLOT NO. LOC.11/MARAGI/9828

This agreement made this.....day of.....year.....

betweenID No.....

of P.O. BOX.....

An Employee/Student of.....

and of Pin No.(Being here under referred to as the Tenant) and

ROSA FLATS of P O BOX 486-10200 MURANG'A.

(Being here under referred to as the Landlord/Appointed managers.

Fill in your details in the spaces provided)- [nyumba kumi] Government requirement

Full name

Passport/ID Number {attach a copy}

Telephone number

Postal Address

Email Address

Place of Work /student.....

Business name/Area of operation/college.....

Business Email Address/college email.....

Telephone Number (place of work)/college.....

Next of Kin

Relationship

Kin postal Address

Telephone number

Previous Landlord

Phone number

Date

Signature

IT IS AGREED AS FOLLOWS

1. That.....
Has agreed to rent house No.....on **Plot Loc. 11/ Maragi 9828** here in referred as **ROSA FLATS, for Ksh** being Monthly rental payment.
The Tenant can pay for multiple months if so wishes.
The Rent will be renewed effective existing terms/ new terms to Ksh per Month.
The Land Lord or his appointed agent will give (six) 6 months notice for any rental adjustments or increase.
2. That the tenant will keep a non interest earning deposit of Months being Kshsrefundable only upon vacation and inspection of the tenancy house.
3. **That rent shall be paid ONLY to PAY BILL No 4095715. ACCOUNT NO. YOUR HOUSE NO [example A1, B1 etc] and receipt issued on request once payment is confirmed, no cash will be accepted whatsoever**
4. That has agreed to pay a monthly rent of kshs.....with effect from.....
5. That rent shall be paid by the **5th** of every month.
6. If rent is not paid by the **10th** of every month the tenant will pay a penalty fee of Kshs 500 for late payment.
7. That the tenant has agreed to be distressed if the rent is not paid by the 25th of every calendar month unless the landlord or appointed manager have given consent for late payment.
8. That the tenant has agreed to be evicted if rent is not paid by the end of the second month irrespective of the deposit paid unless authority is given by the landlord or the appointed managers for late payment and costs incurred passed to the tenant.
9. The tenant has agreed to pay for cheque clearance fees when payment is made by cheque.
10. That the tenant will not be a nuisance to other occupants of the premises especially **selling and smoking of bangi, cannabis sativa and other hard drugs**, this shall lead to eviction of the tenant immediately without any notice whatsoever and report made to the concerned government authority.
11. The tenant will take good care of the premises and maintain cleanliness as may be required, used garbage to be put in provided bins, **used baby diapers** and **used sanitary towels** to be disposed in **special bins** provided or in the premises **Pit Latrine**.
12. The tenant shall not sub-let the premises without authority from the landlord or Appointed Managers.
13. That the premises have no goodwill attached and the tenant shall not ask the incoming tenant or landlord to pay or to refund any goodwill when vacating. The tenant shall remove all his/her fixtures and fittings but can have the same refunded on agreement with the incoming tenant.

14. The tenant shall not alter the general structural condition of the premises.
15. In case of vacation, the tenant shall give a one Months notice to the LANDLORD and vacate the house before the last day of that month; otherwise a full month's rent will be demanded unless consent has been granted for tenant not to vacate beyond that date.
16. The tenant shall permit the landlord or his agents with his workmen at convenient of both parties to enter the premises and examine its condition.
17. That the landlord shall not deny the tenant his/her peaceful enjoyment of the premises.
18. That the landlord or Appointed Manager shall obtain possession when only a reasonable notice is given. This shall however, not be less than one month except in the circumstances specified in clause no. 15 and 21.
19. That in the event that the tenants get involved in any criminal activity in the premises or engages in activities that may threaten the security of other occupants, the landlord or appointed managers shall have the right to evict the tenant without any notice whatsoever.
20. That the tenants shall pay his/her portion of bill of services (electricity, water, sewerage) and will pay meter rental deposit to the respective service providers where applicable.
21. That the tenant shall give a one month notice to vacate and allow access for inspection of the house and verification of the state of electricity and water accounts.
22. That if a tenant vacates without having given a one month written notice, the tenant shall forfeit his or her house deposit.
23. That if a tenant gives a notice to his/her landlord or appointed managers, of his or her intention to vacate the premises, at a time mentioned in the notice, and does not accordingly deliver up the possession thereof at the time specified in the above notice, the landlord /appointed managers shall as assigned by law, be at liberty to demand double in the rent.
24. The Tenant deposit will be refunded a Month after vacating the premise Less amount spent on repairing, repainting or replacing any damaged item, Joint inspection will be done by the Tenant and the Landlord or his appointed agent.
25. The landlord/ appointed managers will seek legal redress if the Tenant fails to honor this agreement.

IN THE WITNESS WHEREOF this agreement was duly executed by the parties hereto the day and year first above written.

SIGNED BY THE TENANT: dated.....

SIGNED BY THE LANDLORD or REAL ESTATE AGENTS or CARETAKER

In the presence of, witness here of

For **ROSA FLATS** DATED